
Legal Memorandum – ADA, Equal Rights, and Texas Law Violations in Displacement of Kathryn Copeland

Date: September 13, 2025

From: Kathryn Copeland

Re: ADA and Texas Law Violations by Bowie House (Auberge Resorts) and Fort Worth Police Department

1. Governing Laws and Protections

- **Americans with Disabilities Act (ADA):**
 - **Title III (42 U.S.C. § 12182):** Requires public accommodations (hotels) to provide *reasonable modifications* to policies, practices, or procedures when necessary for a person with a disability.
 - **Title II (42 U.S.C. § 12132):** Requires public entities (police) to provide reasonable accommodations and avoid discrimination when interacting with disabled individuals.
 - **ADA Retaliation (42 U.S.C. § 12203):** Prohibits retaliation against individuals for requesting accommodations or asserting disability rights.
 - **Civil Rights – 42 U.S.C. § 1983:** Prohibits deprivation of federally protected rights by state actors under color of law.
 - **Texas Human Resources Code, Ch. 121:** Grants disabled persons equal rights to access public facilities and services, mirroring the ADA.
 - **Texas Property Code §§ 92.052–92.056:** Requires landlords to maintain safe housing conditions and cooperate in remediation/displacement scenarios.
-

2. Required Process

Under ADA and Texas law, when a person with disabilities requests accommodations during displacement, the following protocol applies:

1. **Engage in Interactive Process:** Listen to the request, ask clarifying questions, and work toward a reasonable solution.

2. **Provide Reasonable Flexibility:** Modify policies (such as check-out time, property retrieval, transport assistance) unless it imposes undue hardship.
 3. **Protect Medical Needs:** Ensure access to prescribed medication and medical equipment without delay.
 4. **Avoid Retaliation:** Do not punish, threaten, or escalate against someone for asserting disability-related needs.
-

3. Failures by Bowie House (Hotel)

- Denied reasonable ADA accommodation (extra time to pack and arrange transportation after hospitalization).
 - Escalated to arrest instead of engaging in the required interactive process.
 - Retaliated after liability was raised by misrepresenting agreements, refusing assistance, and withholding belongings.
 - Withheld prescribed medication and specialized medical equipment (neck pillow and other pain-management devices), causing direct medical harm.
 - Conversion of property not returned.
-

4. Failures by Fort Worth Police Department

- Ignored explicit disability disclosures during arrest.
 - Denied requests to slow down despite documented pain and medical condition, aggravating injuries.
 - Accepted hotel's misrepresentation of events without verifying or considering accommodations.
 - Acted under color of law to deprive federally protected ADA rights (reasonable modifications, freedom from retaliation).
-

5. Evidence Preservation (Spoliation Notice)

All relevant parties are on notice of potential claims. The following evidence must be preserved:

- **Valet footage from Sept. 10, 9:30–10:30 PM**, when assistance was requested from three valets.
- **Hotel/hallway footage from Sept. 11, 2:00–4:00 AM**, when I returned from the hospital.
- **Lobby/hallway footage** of staff interactions.
- **Footage of removal under arrest** on Sept. 11.

Failure to preserve this material will be treated as intentional spoliation.

6. Conclusion

The displacement and arrest violated multiple federal and state protections. Instead of engaging in the legally required process, both the hotel and FWPD escalated, retaliated, and deprived me of access to medication, equipment, and dignity.

I request immediate return of all belongings and confirmation that evidence will be preserved.

Kathryn Copeland
